

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2023CUPP012195: JAMES WALD, et al. vs TRAVIS EDWARD MARTIN, et al.

09/11/2026 in Department 42

Motion For Leave to File Amended Cross-Complaint for Donna Martin

Motion: Defendant/Cross-Complainant Donna Martin's Motion for Leave to File First Amended Cross-Complaint (*Opposed*)

Tentative Ruling:

The Court finds good cause to lift any stay applicable to this motion under Code of Civil Procedure section 391 for the purposes of deciding the instant motion. There is no harm or prejudice to any party or the court by deciding this motion now.

Defendant/Cross-Complainant Donna Martin's Motion for Leave to File First Amended Cross-Complaint is GRANTED.

The proposed First Amended Cross-Complaint does not add a new party or a new cause of action. It retains the four causes of action asserted in Donna's October 31, 2023 Cross-Complaint (intentional infliction of emotional distress, equitable comparative indemnity and contribution, total implied indemnity, and declaratory relief) and principally adds dates, factual detail, and itemization to theories already pleaded. It also corrects the case number and other clerical matters and adds damages language to the prayer that corresponds to allegations already contained in the body of the original pleading.

Code of Civil Procedure section 473, subdivision (a)(1), directs that amendments may be allowed in furtherance of justice. The discretion is exercised liberally, particularly where no trial date is set and the opposing party does not identify concrete prejudice that cannot be addressed through ordinary responsive pleading or discovery. (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048; *Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 761.) Even substantial amendments are ordinarily permitted absent prejudice; a challenge to the legal sufficiency of the amended pleading is generally better raised by demurrer or motion for judgment on the pleadings. (*Kittredge, supra*, at p. 1048.)

Donna also substantially complies with California Rules of Court, rule 3.1324. Her motion identifies the proposed changes by page and paragraph, explains their effect, states why she believes amendment is necessary, identifies the June 2026 verified discovery responses as the source of additional detail, and explains the timing of the request. (Martin Decl., ¶¶ 3-6.)

Cross-Defendants establish delay in the sense that the original Cross-Complaint has been pending since October 2023 and Donna knew the general theory before June 2026. But delay alone does not establish prejudice. The original pleading already alleged the core disclosure, concealment, financial-benefit, motive, emotional-distress, and punitive-damages theories. The proposed amendment adds greater specificity concerning dates, frequency, alleged benefits, and chronology. No trial date is set. On the record presented, Cross-Defendants have not shown loss

of evidence, inability to conduct necessary discovery, an imminent trial that must be continued, or another concrete prejudice sufficient to overcome the liberal amendment policy.

The Court does not decide at this stage whether the amended IIED or indemnity theories will survive a pleading challenge. The opposition's futility arguments can be raised against the amended pleading in the ordinary course. The Court likewise does not treat Donna's reliance on discovery to add factual allegations as inconsistent with the rule that disputed evidence generally cannot be used to defeat an opposing pleading on demurrer. One concerns the sufficiency of an existing pleading; the other concerns whether a pleader may amend her own allegations based on information obtained in discovery.

Donna Martin shall separately file and serve the First Amended Cross-Complaint in the form attached as Exhibit A to the motion within 10 days after service of notice of this ruling. This ruling is without prejudice to any demurrer, motion to strike, or other authorized challenge to the amended pleading.

Moving party to give notice.